

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:

DASHAWN McCLAM,

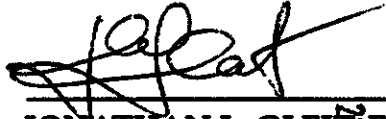
Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trialCITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. PEDRO LOPEZ, Det. EDWIN M.
GINES, Det. ABDIEL R. ANDERSON and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,
Defendants.The basis of venue is:
CPLR 504 (3)**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
May 10, 2013By:  JONATHAN L. GLEITMAN ESQ.
Attorney for Plaintiff888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007Det. Pedro Lopez, Shield No. 006530, Det. Edwin M. Gines, Shield No. 003600, Det. Abdiel R. Anderson,
Shield No. 001429, of the NARCBX, 1 POLICE PLAZA, NY NY 10038

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DASHAWN McCLAM,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. PEDRO LOPEZ, P.O., Det. EDWIN M.
GINES, Det. ABDIEL R. ANDERSON, and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and meant
to designate additional offending officers,

Defendants.
-----X

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BRONX COUNTY

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

DASHAWN McCLAM

1. At the time of the commencement of this action, plaintiff DASHAWN McCLAM was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about January 16, 2012, Det. PEDRO LOPEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about January 16, 2012, at approximately 12:30 P.M., Det. PEDRO LOPEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about January 16, 2012, EDWIN M. GINES was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about January 16, 2012, at approximately 12:30 P.M., EDWIN M. GINES was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about January 16, 2012, Det. ABDIEL R. ANDERSON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about January 16, 2012, at approximately 12:30 P.M., Det. ABDIEL R. ANDERSON was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about January 16, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about January 16, 2012, at approximately 12:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about January 16, 2012 at approximately 12:30 P.M., at or near the corner of Seabury Place and East 172nd Street, Bronx, New York, the plaintiff DASHAWN McCLAM was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine DASHAWN McCLAM .

14. That the defendants, their agents, servants and/or employees arrested the plaintiff DASHAWN McCLAM without any basis in law or fact and without reasonable, probable or just cause or justification.

15. That the defendants, their agents, servants and/or employees arrested the plaintiff DASHAWN McCLAM without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That the defendants Det. PEDRO LOPEZ, EDWIN M. GINES, Det. ABDIEL R. ANDERSON, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

17. That defendants, their agents, servants and/or employees continued to prosecute plaintiff DASHAWN McCLAM and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

18. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff DASHAWN McCLAM, who was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing freight, shock, emotional distress and physical consequences.

19. That the defendants, their agents, servants and/or employees strip searched the plaintiff without a reasonable suspicion that he was secreting evidence within a bodily cavity.

20. The commencement of the criminal proceedings, which was assigned Docket No. 2012BX003354 and case number 03354C-2012 in the Supreme Court of the State of New York, Criminal Division, was malicious and begun in malice and without probable cause that the proceedings could succeed by the Defendants.

21. That on March 13, 2012 all criminal charges were dismissed by Hon. Dennis Boyle an Acting Justice of the Supreme Court, Criminal Division, and the prosecution was terminated in plaintiff's favor.

22. That defendants' actions constituted a malicious prosecution, and as a result thereof, plaintiff was required to defend his liberty for a period of approximately 56 days.

23. That the plaintiff DASHAWN McCLAM, being aware of his unjust malicious prosecution, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, Det.

PEDRO LOPEZ, EDWIN M. GINES, Det. ABDIEL R. ANDERSON and OFFICER[S]
JOHN AND/OR JAMES DOE.

24. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons at a given location for possession or sale of illicit substances without reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting invasive searches in public and while in custody when there is no reasonable basis to conduct an invasive search and without individualized reasonable suspicion of the secreting of evidence within a bodily cavity, are a matter of policy and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances and multiple investigations into said practices.

25. Officers of the New York City Police Department, and especially and specifically officers of the Narcotics Divisions and 42nd Precinct routinely testify falsely so often that such conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to plaintiff herein. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely stop minority men without a legal reason to do so and are required or expected to do so, to satisfy arrest quotas. Said

productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual.

26. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by statements repeatedly made by defendants, to wit, in sum and substance, "it's a drug raid, we have to take everyone" and has occurred to such individuals such as ADEUNA CABRAL, an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M.; and SAMUEL ALLEN on February 3, 2010 inside 1371 College Avenue, Bronx, New York ; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York;

TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNAY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

27. Further, officers of the New York City Police Department, and especially and specifically officers of the 42nd Precinct routinely engage in the use of practices such as unlawful and unnecessary searches in order to degrade, humiliate and subjugate persons conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity and has occurred to such individuals such as, for instance to EDUARDO DeJESUS was improperly strip searched by officers of the 42nd Precinct after being wrongly arrested on March 26, 2010; BRIAN FISHER was improperly strip searched by officers of the 42nd Precinct after being wrongly arrested

on August 23rd 2010; Eshawn Sutton was improperly strip searched by officers of the 42nd Precinct after being wrongly arrested August 17, 2010. Further, such wrongful strip searches are well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

28. That no negligence or actions on the part of the plaintiff DASHAWN McCLAM contributed to the occurrences alleged herein in any manner whatsoever.

29. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the Plaintiff DASHAWN McCLAM of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police,

the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

30. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

31. That as a result of the foregoing, the plaintiff DASHAWN McCLAM were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

DASHAWN McCLAM

32. That plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 31 as though more fully set forth herein.

33. That on or about May 10, 2012, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant DASHAWN McCLAM , to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the

commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, a GML 50-h hearing was held for claimant on August 7, 2012 and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claim is based.

34. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

35. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff DASHAWN McCLAM of Due Process under Law.

36. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the plaintiff DASHAWN McCLAM without any basis in law or fact.

37. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff DASHAWN McCLAM due to prejudice or with malice and without any basis in law or fact.

38. That the defendants Det. PEDRO LOPEZ, EDWIN M. GINES, Det. ABDIEL R. ANDERSON, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against

Plaintiff DASHAWN McCLAM thereby thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

39. That defendants, their agents, servants and/or employees continued to prosecute plaintiff DASHAWN McCLAM and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

40. The commencement of the criminal proceedings, which was assigned Docket No. 2012BX003354 and case number 03354C-2012 in the Supreme Court of the State of New York, Criminal Division, was malicious and begun in malice and without probable cause that the proceedings could succeed by the Defendants.

41. That on March 13, 2012 all criminal charges were dismissed by Hon. Dennis Boyle an Acting Justice of the Supreme Court, Criminal Division, and the prosecution was terminated in plaintiff's favor.

42. That defendants' actions constituted a malicious prosecution, and as a result thereof, plaintiff was required to defend his liberty against unjust charges for a period of approximately 56 days.

43. That the plaintiff DASHAWN McCLAM, being aware of his unjust malicious prosecution, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of

Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, Det.
PEDRO LOPEZ, EDWIN M. GINES, Det. ABDIEL R. ANDERSON and OFFICER[S]
JOHN AND/OR JAMES DOE.

44. That this cause of action falls within one or more of the exceptions as set forth in
CPLR Section 1602.

45. That as a result of the foregoing, the plaintiff DASHAWN McCLAM were
damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

DASHAWN McCLAM

46. That Plaintiff repeats, reiterates and realleges each and every allegation
contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

47. That the defendants carelessly, recklessly and negligently failed to properly
interview, hire, select, train, manage, supervise and control its employees, agents, and /
or servants and negligently retained its employees, agents, and / or servants.

48. That the defendants carelessly, recklessly and negligently failed to properly
interview, hire, select, train, manage, supervise and control its employees, agents, and /
or servants and negligently retained its employees, agents, and / or servants in the
proper and lawful arrest of individuals and in the utilization of invasive search

procedures carried out in public and within the view of the general public and in the proper searches of persons with the proper requisite reasonable suspicion.

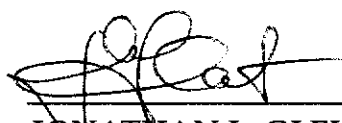
49. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff DASHAWN McCLAM was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages, and attorneys

fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts,
together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
May 10, 2013


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

DASHAWN McCLAM

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Pedro Lopez, Shield No. 006530, Det. Edwin M. Gines, Shield No. 003600, Det.
Abdiel R. Anderson, Shield No. 001429, of the NARCB BX, 1 POLICE PLAZA, NY NY
10038

PLAINTIFF'S VERIFICATION

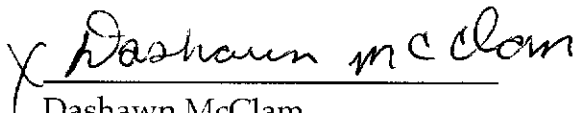
Dashawn McClam affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


Dashawn McClam